

25TRCV02737 25TRCV02737

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV02737 Hearing Date: September 2, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – September 2, 2026

Calendar No.

PROCEEDINGS

Ijeoma

Chukwudi v. Edmundo Perfecto, DDS, et al.

25TRCV02737

Ijeoma Chukwudi's Motion to Set Aside Dismissal

TENTATIVE RULING

Ijeoma Chukwudi's Motion to Set

Aside Dismissal is granted.

Background

Plaintiff filed the Complaint on August 20, 2025. Plaintiff

alleges the following facts. Defendants committed medical malpractice in the

course of dental treatments and surgeries performed upon Plaintiff.

Motion to Set Aside Dismissal

CCP § 473(b) states, in relevant part: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . .”

Plaintiff moves for an order granting relief from the entry of dismissal. The motion is brought pursuant to CCP § 473 et seq. on the grounds that the dismissal was entered due to the mistake, inadvertence, surprise, and/or excusable neglect of Plaintiff. Plaintiff has set forth facts to support a showing that the dismissal was entered due to the mistake, inadvertence, surprise, and/or excusable neglect of Plaintiff. Plaintiff states that Plaintiff did not receive notice of the January 5, 2026 Order to Show cause because the address that was utilized in his initial filings, and, thus, the address used by the Court to provide notice, was not Plaintiff's address but instead the address of a paralegal who assisted Plaintiff. (Decl., Ijeoma Chukwudi ¶¶ 2-8). The Court notes that Plaintiff filed a notice of change of address. The Court determines that the dismissal occurred due to the excusable neglect of Plaintiff.

The motion is granted pursuant to the discretionary

provision of CCP § 473(b). The dismissal is hereby set aside.

Plaintiff is ordered to give notice of this ruling.